

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA**

NO. 2:21-CV-2372

CIVIL ACTION

JUDGE

MAGISTRATE

ASHLEY RAY WIFE OF AND JOSHUA RAY

VS

**ANTHONY KING
ENERGY SYSTEMS SOUTHEAST, LLC, AND
UNION INSURANCE COMPANY**

COMPLAINT FOR DAMAGES

NOW INTO COURT, through undersigned counsel, come the petitioners herein, Ashley Ray, wife of and Joshua Ray, and who is establish and set forth their complaint for damages against the defendants herein, Anthony King, Energy Systems Southeast, LLC, and Union Ins. Co., and in so doing, suggests upon information and belief as follows:

1.

At all material times, defendant, Anthony King, was a resident of the State of Alabama who, on April 1, 2021, was operating a 2018 Ford F250 truck owned by his employer, Energy Systems Southeast, LLC (Energy Systems), in the State of Louisiana, and within the Parish of St. Tammany.

2.

At all material times, Energy Systems Southeast, LLC, was and now is a business headquartered and located in Birmingham, Alabama and was the employer of Anthony King and the owner of the vehicle he was operating in Louisiana on April 1, 2021.

3.

At all material times, Union Insurance Company was and now is a foreign insurer which provided a policy of automobile and/or commercial vehicle liability insurance to the vehicle being operated by defendant Anthony King, and which was owned by Energy Systems Southeast, LLC. As such, Union Ins. Co. is jointly and solitary bound for any and all liability and damages which may have been incurred by Anthony King and/or his employer, Energy Systems Southeast, LLC, and arising from the accident of April 1, 2021 described herein.

4.

At all times, Joshua Ray and Ashley Ray, husband-and-wife, were residents of the Parish of St. Tammany, State of Louisiana, residing in Slidell, Louisiana on the date of the accident of April 1, 2021, described herein. As the complainants are residents of the State of Louisiana, and as all of the defendants are residents of states other than the State of Louisiana, there is complete diversity of citizenship among the parties, and therefore, complainants invoke federal jurisdiction pursuant to the provisions of 28 U.S.C. 1332.

5.

On the aforementioned date of April 1, 2021, complainants were occupying a 2016 Dodge Charger, which was then owned and being operated by Ashley Ray, and in which Joshua Ray was riding as a passenger, and which was traveling in a southbound direction on Louisiana Highway 434 in St. Tammany Parish.

6.

Immediately prior to the impact herein, defendant Anthony King, was operating the 2018 Ford F250 in an eastbound direction on the Interstate 12 and he had exited in the eastbound offramp heading towards Louisiana Highway 434.

7.

As Anthony King exited the interstate he was faced with a stop sign at the offramp intersection with the Louisiana Highway 434. Defendant King indicated that he stopped at the stop sign but fail to see the complainants vehicle which was approaching the intersection and, as indicated, was traveling southbound on Highway 434. Defendant Anthony King failed to yield to the Ray vehicle and entered the southbound lane of travel on Highway 434, violently colliding with the front of the Ray vehicle, as King appeared to have begun to make a left turn into the path of the Ray vehicle on Highway 434. Complainants suggest that King is solely at fault for bringing about the occurrence of this accident.

8.

At all times, King was employed by defendant Energy Systems Southeast, LLC, and was on a mission for his employer at the time of this incident. Accordingly, Energy Systems Southeast, LLC, is at fault vicariously as it is responsible for the actions of its

employee, King, in bringing about the occurrence of this collision. For that reason, Energy Systems Southeast, LLC was and now is jointly and solitary bound with defendant King for all liability herein.

9.

As indicated previously, at all times, Union Ins. Co. provided automobile liability coverage to Energy Systems, Southeast, LLC, and therefore, is also jointly and solitary bound with King and Energy Systems Southeast, LLC for any and all damages and liability herein.

10.

Following the occurrence of this impact on April 1, 2021, an investigation was conducted by the Louisiana Department of Public Safety through Ofc. Michael Nicolini. As a result of his investigation, Ofc. Nicolini determined that defendant King had violated the provisions of Louisiana Rev. Stat. 32:123, and had failed to yield the right-of-way to the Ray vehicle

11.

The impact between the defendant's vehicle and the complainants vehicle was severe and substantial bringing about the total destruction of the front end of the Ray vehicle and resulting in a determination by the defendant's insurer that the vehicle was a total loss. In this regard, defendant Union Insurance Company conceded full liability and paid the complainants property damages.

12.

In addition to causing the destruction of the Ray vehicle, the occurrence of this impact caused both Joshua and Ashley Ray to be thrown violently about inside the

vehicle bringing about substantial bodily injuries to them. Specifically, and following the occurrence of this accident, an MRI of the cervical spine was done on Ashley Ray revealing a broad-based right disc herniation at the C5-6 level as well as a right central disc herniation at the C6-7 level. In addition, Ashley Ray sustained back and shoulder injuries which have already required her to undergo shoulder surgery.

13.

Likewise, Joshua Ray sustained substantial injuries as a result of this impact caused by Mr. King, specifically, a broad-based disc herniation at the C3-4 level, as well as shoulder and low back injuries.

14.

Complainants suggest that, since the occurrence of this accident, they have both received extensive treatment using chiropractic medicine, pain interventional medicine, and orthopedic surgical intervention. Accordingly, based on the medical treatment and medical bills incurred to date complainants aver that their damages exceed the \$75,000 jurisdictional limitation in a diversity action and, therefore, suggest that subject matter jurisdiction in this court is appropriate.

15.

In addition to the physical injuries they have sustained herein plaintiffs aver that each of them was employed at full-time occupations at the time this accident occurred. Since the occurrence of this accident, Ashley Ray has been required to miss substantial time from work, including being required to take disability time from her occupation to attend medical treatments and to undergo and recover from her recent surgery.

Likewise, Joshua Ray was employed, at the time of this accident, at an occupation requiring moderate to heavy labor and he, likewise, has been required to use sick leave and to take advantage of disability insurance, in order to compensate him for significant time he is lost from work. Further, Joshua Ray anticipates that he will not be able to continue at his current occupation.

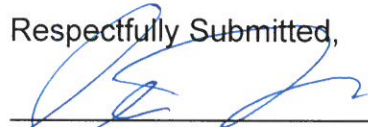
16.

Accordingly, each of the complainants herein, Ashley Ray and Joshua Ray, aver that they are entitled to compensation from the defendant's for physical pain-and-suffering, past present and future, mental and emotional pain-and-suffering, past present and future, medical bills, past present and future, and loss of earnings and/or loss of earnings capacity, past present and future. Plaintiffs suggest that their damages, in total, may exceed the \$1 million policy limit offered through Union Ins. Co. in this case. In addition to the aforementioned damages, plaintiffs aver that they are entitled to recovery of all court costs and expert costs for filing the lawsuit herein.

17.

Complainants aver that they are entitled to and pray for trial by jury on all issues. WHEREFORE, complainants, Ashley Ray and Joshua Ray pray that this petition be filed, that it be deemed good and sufficient, and that, after due proceedings be had, there be judgment herein in favor of the complainants, and against all of the defendants, jointly and in solido, for the damage is itemized herein, including all interest, costs, and expert fees, for trial by jury, and for any and all other relief which this Court is competent to grant.

Respectfully Submitted,



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